TITLE COMMITMENT

Falcon Data Campus | Minneapolis, MN

Commitment No.	TC-7777
Property	Falcon Data Campus, 3771 Technology Avenue, Minneapolis, MN 24995
Proposed Insured	Tidewater Core Fund
Effective Date	March 4, 2022

1. Schedule A - Commitment. Effective Date: March 4, 2022. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Tidewater Core Fund. Amount of Insurance: $141,900,000. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

2. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Pemberton Real Estate Fund III. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

3. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Pemberton Real Estate Fund III to Tidewater Core Fund. Provide evidence of authority of signatories. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

4. Schedule B-II - Exception. Taxes and assessments for the year 2026 and subsequent years, a lien not yet due and payable. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

5. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 30, Page 30, Official Records of the county. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

6. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 404040, as amended. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

7. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

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8. Schedule B-II - Exception. Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

9. Schedule A - Commitment. Effective Date: March 4, 2022. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Tidewater Core Fund. Amount of Insurance: $141,900,000. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

10. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Pemberton Real Estate Fund III. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

11. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Pemberton Real Estate Fund III to Tidewater Core Fund. Provide evidence of authority of signatories. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

12. Schedule B-II - Exception. Taxes and assessments for the year 2020 and subsequent years, a lien not yet due and payable. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN. Time is of the essence with respect to each and every provision of this instrument.

13. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 41, Page 41, Official Records of the county. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

14. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 292929, as amended. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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15. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

16. Schedule B-II - Exception. Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

17. Schedule A - Commitment. Effective Date: March 4, 2022. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Tidewater Core Fund. Amount of Insurance: $141,900,000. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

18. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Pemberton Real Estate Fund III. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

19. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Pemberton Real Estate Fund III to Tidewater Core Fund. Provide evidence of authority of signatories. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

20. Schedule B-II - Exception. Taxes and assessments for the year 2023 and subsequent years, a lien not yet due and payable. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

21. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 16, Page 16, Official Records of the county. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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22. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 383838, as amended. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

23. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

24. Schedule B-II - Exception. Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

25. Schedule A - Commitment. Effective Date: March 4, 2022. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Tidewater Core Fund. Amount of Insurance: $141,900,000. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

26. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Pemberton Real Estate Fund III. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN.

27. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Pemberton Real Estate Fund III to Tidewater Core Fund. Provide evidence of authority of signatories. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

28. Schedule B-II - Exception. Taxes and assessments for the year 2023 and subsequent years, a lien not yet due and payable. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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29. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 31, Page 31, Official Records of the county. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

30. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 777, as amended. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

31. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN.

32. Schedule B-II - Exception. Matters shown on survey prepared by Boundary Line Surveyors, including encroachments, if any, along the boundary lines. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

33. Schedule A - Commitment. Effective Date: March 4, 2022. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Tidewater Core Fund. Amount of Insurance: $141,900,000. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

34. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Pemberton Real Estate Fund III. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN.

35. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Pemberton Real Estate Fund III to Tidewater Core Fund. Provide evidence of authority of signatories. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN.

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Disclaimer and Confidentiality

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No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MN. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This document relates solely to Falcon Data Campus and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

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